

HEADNOTE

“The Court has the discretionary powers to admit an amend of the patent even after a previous application to amend that patent has been submitted and after the closing of the written procedure; however, the admission of this subsequent request must not prejudice the other party's right to defence.”

COURT

Central Division in Paris

PATENT

EP 3 646 825

KEYWORDS

subsequent request to amend the patent

permission of the Court

closing of the written procedure

additional defence

PROCEEDINGS

Action for revocation

A system comprising a prosthetic valve
and a delivery catheter

SUMMARY

The Central Division in Paris ruled on an action for revocation. The patent at issue relates to a system comprising a prosthetic valve and a delivery catheter. According to the headnotes of the decision, courts retain the discretion to allow a party to submit amended claims even after a prior amendment request and the closure of written proceedings, provided that doing so does not undermine the opposing party's opportunity to respond.